

SEE ALSO: Newsletter of September 13, 2024

[doc. web no. 10052798]

Provision of July 4, 2024

Register of Provisions

no. 411 of July 4, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN the meeting held today, attended by

Prof. Pasquale Stanzone, President, Prof. Ginevra Cerrina Feroni, Vice President, Dr. Agostino Ghiglia, and Attorney Guido Scorza, members, and Secretary General Fabio Mattei;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016 (hereinafter, "Regulation");

HAVING REGARD TO the Code regarding the protection of personal data, containing provisions for the adaptation of the national legal system to Regulation (EU) 2016/679 (Legislative Decree of June 30, 2003, no. 196, as amended by Legislative Decree of August 10, 2018, no. 101, hereinafter "Code");

HAVING REGARD TO the note of June 27, 2023, with which the Regional Guarantor for the Rights of the Person in the Veneto Region reported to this Authority the availability online of a judgment from the Court of Vicenza, published in full and without any anonymization of the minors mentioned therein - in the form of a link accompanying a commentary article (<https://...>) - concerning a dispute between two municipalities regarding the expenses incurred for the maintenance of certain minors in "day or semi-residential" facilities (Law no. 328/2000 and Veneto Region Law no. 5/1996);

HAVING REGARD TO the request for information sent by the Office on November 9, 2023 (prot. 151176) to Nomodidattica S.r.l. and the note of the same day with which the Company communicated the removal of the article;

HAVING REGARD TO the subsequent note of November 27, in which the Company particularly represented that:

- the publication of the contested article constituted a legitimate manifestation of the exercise of the right to report, carried out in compliance with the standards of public interest and restraint on a topic of particular interest to the local authorities to which the magazine "Moltocomuni" is directed, concerning "an important precedent in the interpretation of state and regional regulations regarding economic integration for assistance interventions in residential facilities";
- the processing of personal data was carried out in accordance with Article 21 of the Constitution, Article 10 of the ECHR, and the balancing provided for in Article 17, paragraph 3, letter a) of Regulation 2016/679/EU, as well as in compliance with the principles of lawfulness and fairness of processing and minimization referred to in Article 5, paragraph 1, letters a) and c) of the aforementioned Regulation;
- the processing of data was limited to what was necessary for journalistic purposes, in compliance with the principle of essentiality of information, as outlined by Articles 6 and 8 of the Deontological Rules regarding the processing of personal data in the exercise of journalistic activity, by the pronouncements of the Guarantor and by jurisprudence;
- the commentary article on the judgment did not include the names of the individuals involved, nor those of the minors;
- the alleged harmful effects were immediately removed;
- the magazine, which is freely accessible, has never received any remarks regarding data privacy and, on the other hand, has a specific section dedicated to this matter, performing a function of disseminating culture and rules in this dedicated area; nonetheless, it committed to "remind authors to pay particular attention and to obscure the data of individuals in the text of the judgments, as published or received from others."

HAVING REGARD TO the note from the Office of April 15 (prot. no. 46595/24) with which, pursuant to Article 166, paragraph 5, of the Code, the initiation of proceedings for the possible adoption of the measures referred to in Article 58, paragraph 2, of the Regulation was communicated to Nomodidattica

S.r.l. and the possible violations of law in relation to the general principles regarding processing (Article 5, paragraph 1, letters a and c) of the Regulation), Articles 50 and 52 of the Code, and the specific provisions regarding processing carried out in the exercise of journalistic activity with particular reference to Article 137, paragraph 3, of the Code, Articles 6 and 7 of the Deontological Rules); HAVING REGARD TO the note of May 9, 2024, with which the Company, while referring to previous defensive writings, intended to clarify that:

- the magazine, which is freely accessible to users (generally, a limited number predominantly consisting of public employees) "utilizes contributions from various authors, who, normally, on a voluntary basis and without any commitment to continuity, contribute to enhance its content with the publication of news, articles, notes on judgments, and insights on matters of interest to the system of local autonomies";
- the text of the article "contains no personal data and even less the names of minors" and "faithfully reflects the content of the judicial provision, of significant public interest especially for the system of municipalities";
- "the judgment (linkable), however, as correctly contested by this Authority, includes the names of some foreign minors; the data were not anonymized due to a mere unintentional error, stemming from the (incorrect) belief that, as is customary, the data had already been rendered unintelligible in the provision by the judicial authority";
- the alleged harmful effects of the violation have nonetheless been removed as a result of the immediate...

to the dissemination of information for journalistic purposes, albeit in violation of the applicable regulations;

d) the prompt actions taken by the Company to remove the published content and mitigate the effects of the violation.

CONSIDERED that, in light of the above, it is necessary to impose an administrative fine on Nomodidattica S.r.l. for the violation of the provisions of the Code and the Regulation, taking into account both the aggravating and mitigating factors identified;

DECREES:

1. To declare the illegality of the processing of personal data of the minors involved as described above.
2. To impose an administrative fine on Nomodidattica S.r.l. in the amount of [insert amount], considering the nature of the violation and the circumstances surrounding it.
3. To prohibit any further processing of the personal data of the complainants, except for their retention for potential judicial uses.
4. To order the immediate removal of the published content from the website "www.moltocomuni.it" and to ensure that such violations do not occur in the future.

This decision is subject to appeal in accordance with the applicable laws and regulations.

Issued on [insert date].

[Signature]

[Name]

[Title]

[Authority]

– in general terms – to the freedom of information (art. 85) and from the Code (arts. 136 et seq.);

d) the adoption of measures suitable to eliminate the consequences of the violation (art. 83, par. 2, lett. c), of the Regulation), having the holder promptly removed the provision;

e) the full cooperation shown during the procedure (art. 83, par. 2, lett. f), of the Regulation) and the absence of previous disputes by the Authority in the journalistic field (art. 83, par. 2, lett. e), of the Regulation;

f) the conditions on the organizational, economic, and professional level of the offender (art. 83, par. 2,

lett. k), of the Regulation) taking into account what was declared by the Company and emerged in the financial statements for the year 2022;

CONSIDERING the parameters mentioned above and the principles of effectiveness, proportionality, and deterrence indicated in art. 83, par. 1, of the Regulation;

CONSIDERING that, based on the overall elements indicated above, an administrative pecuniary sanction should be applied in the amount of euro 10,000.00 (ten thousand);

CONSIDERING that the conditions exist to proceed with the annotation in the internal register of the Authority as per art. 57, par. 1, lett. u), of the Regulation, regarding the measures adopted in this case in accordance with art. 58, par. 2, of the same Regulation;

HAVING SEEN the documentation in the records;

HAVING SEEN the observations made by the Secretary General pursuant to art. 15 of the Regulation of the Guarantor no. 1/2000;

REPORTING by Dr. Agostino Ghiglia;

ALL OF THE ABOVE HAVING BEEN STATED, THE GUARANTOR

pursuant to art. 57, par. 1 lett. f), of the Regulation, declares the illegality of the processing in the terms stated in the preamble and consequently:

a) pursuant to art. 58, par. 2, lett. f) of the Regulation, orders the prohibition of further processing of the personal data of the complainants, except for their retention, also for potential uses in judicial proceedings;

ORDERS

pursuant to arts. 58, par. 2 lett. i) and 83 of the Regulation to Nomodidattica S.r.l., based in Verona, via Caserma Ospital Vecchio, 9 – C.a.p. 37122 - VAT and Tax Code: 0416245023 in the person of the legal representative pro tempore, to pay the sum of euro 10,000.00 (ten thousand) as an administrative pecuniary sanction for the violations indicated in the reasoning, stating that the offender, pursuant to art. 166, par. 8, of the Code has the option to settle the dispute by paying, within thirty days, an amount equal to half of the imposed sanction;

ORDERS

Nomodidattica S.r.l., in case of failure to settle the dispute pursuant to the aforementioned art. 166, par. 8, of the Code, to pay the sum of euro 10,000.00 (ten thousand), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts in accordance with art. 27 of law no. 689/1981.

DISPOSES

the annotation in the internal register of the Authority as per art. 57, par. 1, lett. u), of the Regulation, of the measures adopted against Nomodidattica S.r.l. in accordance with art. 58, par. 2, of the same Regulation.

Pursuant to art. 78 of the Regulation, as well as arts. 152 of the Code and 10 of Legislative Decree 1st September 2011, no. 150, against this provision an appeal may be made to the ordinary judicial authority, with a petition filed, alternatively, at the court of the place where the data controller resides or has its registered office or at the court of the place of residence of the interested party within thirty days from the date of communication of the provision itself or sixty days if the appellant resides abroad.

Rome, 4 July 2024

THE PRESIDENT

Stanzione

THE REPORTER

Ghiglia

THE SECRETARY GENERAL

Mattei